

JUSTIFICATION AND APPROVAL (J&A) FOR OTHER THAN FULL AND OPEN COMPETITION

J&A No.: [REDACTED]

1. Identification of the Agency of the Contracting Activity.

The United States Army Corps of Engineers would like to request follow on services from an Architect and Engineering firm, Lee & Sakahara Architects, Inc to provide Construction Phase Services after completing Design work under Air Force Services Contract to complete the construction of the Visiting Quarters and Temporary Lodging Facility at Wright Patterson Air Force Base.

2. Nature and Description of the Action Being Approved.

This Justification and Approval (J&A) authorizes the award of a sole-source, firm-fixed-price contract to Lee & Sakahara Architects for the provision of Construction Phase Services. This is a follow-on action to contracts [REDACTED] - Visiting Quarters and [REDACTED] - Temporary Lodging Facility. This procurement will be funded with Non-appropriated Funds (NAF).

3. Description of the Supplies/Services Required to Meet the Agency's Needs.

The scope of this acquisition is to procure construction phase services for the Visiting Quarters and Temporary Lodging Facility at Wright Patterson Air Force Base. The Visiting Quarters Architect – Engineer (AE) services are to implement the Air Force Branded design developed and approved by AFSVC and AFCED leadership for a 398-guest room lodging facility. The Temporary Lodging Facility AE services are to provide complete design for a new TLF with associated back-of-house support facilities. The facility is to follow the TLF standard developed by Air Force Services in September 2016. This new TLF complex will be comprised of two buildings of 10 units each and two buildings with 8 units each. Two units will be accessible and the remaining thirty-four will be standard units for a total of thirty-six units. These services include, but are not limited to, construction administration, on-site supervision, quality control, and project management to ensure the successful and timely completion of the project in accordance with the design specifications. The Construction Phase Services envisioned under this contract will also include the Design Firm providing Engineering Design Services during Construction, Construction Reviews/ Requests for Information, Construction Submittal Reviews, Meeting Coordination and Site Visits.

The total estimated value of this action is [REDACTED], including the base period and any option periods. The period of performance for this contract shall match the duration of the respective construction contracts period of performance.

4. Statutory Authority Permitting Other Than Full and Open Competition.

This procurement will be funded with solely Non-Appropriated Funds. As such, the Federal Acquisition Regulation (FAR) and the Competition in Contracting Act (CICA) do not apply. Although the statutory requirements of CICA do not apply to actions involving only NAFs, Army regulation requires maximum practicable competition and justification of sole source procurements. AR 215-4, paras. 2-11, and 2-12.

This action is a follow-on sole source contract to replace a previous task order that was competitively awarded under an Air Force Services contract. AR 215-4 para. 2-13 authorizes a follow-on sole source of a previously competitively awarded contract when the following conditions are met:

a. Supplies and services may be deemed to be available only from the original source for the continued provision of highly specialized supplies or services, (for example, additional units, replacement items for integration, sustainment, and support with existing systems) when it is likely that award to any other source would result in—

(1) Duplication of cost, both direct and indirect, to the NAFI that is not expected to be recovered through competition and/or;

(2) Unacceptable delays in fulfilling the NAFI's requirements.

5. Rationale Justifying Use of Cited Authority.

In accordance with AR 215-4, paragraph 2-13, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in either duplication of cost to the NAFI that is not expected to be recovered through competition or unacceptable delays in fulfilling the NAFI's requirements.

- **Substantial Duplication of Cost:** Lee & Sakahara Architects was the incumbent contractor for the design and pre-construction phases of this project. As such, they possess unique and detailed knowledge of the project's design, specifications, and site conditions. A new contractor would be required to expend significant amounts of time and resources to familiarize themselves with the project to the same degree. This would result in substantial duplication of costs, which are not expected to be recovered through competition. Cost duplication was derived from the cost of the initial design and pre-construction phase, man-hours required for a new team to review and understand the existing documentation, etc.
- **Unacceptable Delays:** Awarding this contract to any other source would cause an unacceptable delay in the project schedule. This is due to the learning curve a new contractor would face, and the time required for the transfer of project knowledge and documentation. Such a delay would compromise the operational readiness of the facility, and result in significant additional costs.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable

While other firms may have proven design experience, no one possesses the unique, in-depth knowledge of this specific project that the incumbent contractor has.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer will determine that the anticipated cost to the Government for this contract will be fair and reasonable. This will be accomplished through detailed price analysis, a comparison with the IGE as well as an analysis of historical pricing data from this contractor working the previous design of this building type for Air Force services and obtaining cost and pricing data from the contractor as requested.

8. Market Research.

Market research was conducted. A review of the System for Award Management (SAM) was conducted to identify firms with the relevant NAICS code. The results of the market research confirm that while other firms can provide general construction phase services, only the incumbent possesses the specialized knowledge required to perform the construction phase services for this specific project without causing unacceptable delays and cost duplication.

9. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

None.

10. Listing of Sources, if any, that Expressed Interest in the Acquisition.

None.

11. Actions to Remove Barriers to Future Competition.

For future projects of this nature, the Government has procured a complete and detailed technical data package during the design phase that can be provided to any interested offerors for the construction phase. No effective competition is anticipated considering the reasons stated above. This is a finite requirement with no anticipated future needs. Therefore, there are no actions to increase future competition.

12. Certifications and Approvals.

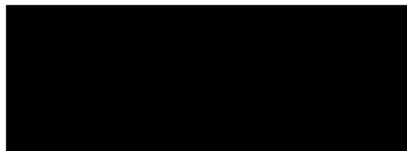
Technical/Requirements Certification:

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents are complete and accurate to the best of my knowledge and belief.



Project Engineer

Legal Review and Concurrence: I hereby determine that the information herein is legally sufficient, and I concur with the sole source procurement.



Office of Counsel

Contracting Officer Certification & Fair and Reasonable Determination: I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based upon the

estimate outlined in paragraph 3. At time of evaluating the proposal price, the overall proposed price will be evaluated for fair and reasonableness. I certify that this justification is accurate and complete to the best of my knowledge and belief.



Contracting Officer